

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
August 24, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2023-01300740 Medina vs. Kindness General Contractors, LLC	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed.

		Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2023-01359910 Hotchkiss vs. Amarik Properties, Inc.	The tentative ruling is to continue the Final Report Hearing to December 7, 2026 at 1:30 p.m. to clarify that the settlement has been administered in accordance with the court’s October 13, 2025 Order granting final approval and the settlement agreement that the court approved. All supporting papers must be filed at least 16 days before the Final Report Hearing date. The escalator clause in the parties’ settlement agreement states: 3. Escalator Clause. The Parties have agreed to the terms set forth herein based on their estimate that the PAGA Members have worked 2,700 pay periods during the PAGA Period. However, should the Administrator determine that actual number of pay periods worked by the PAGA Members is more than 10% larger than this estimate (i.e. more than 2,970 pay periods), then Defendant shall have the option of either: (a) increasing the MSA pro rata for every additional pay period worked by the PAGA Members above that 10% threshold (i.e. if the actual number of pay periods worked by the PAGA Members is 11% larger than this estimate, the MSA shall be increased by 1%) or (b) ending the PAGA Period on the date that the number of pay periods worked by the PAGA Members equals 2,970, in which case no adjustment to the MSA shall be made. (Settlement § III(3).) The settlement administrator states that the escalator clause was triggered because the total number of Pay Periods was four thousand and eighty-two (4,082), which was more than 10% over the estimated 2,970 pay periods. The administrator explained that the 41.19% excess results in a required increase to the Gross Settlement Amount of \$20,592.59. However, the settlement administrator states that Defendant deposited only the original Gross Settlement Amount of \$70,407.41, not the escalated amount totaling \$90,000.00. Further, the administrator states that “[t]he Court approved Plaintiff’s Counsel attorneys’ fees (\$21,122.22 plus Escalator Clause Fee of \$6,177.78),” but the court did no such thing. The court approved a fixed amount of attorney’s fees of \$21,122.22 and never authorized any increase in attorney’s fees based on the escalator clause. (ROA 62, 75 [both stating that the court approved \$21,122.22 in attorney’s fees].) There is also no language in the settlement agreement that provides for an increase in attorney’s fees if the escalator clause is triggered.